

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.258963 of 2018
(Faisal Vs. The State etc)

Date of hearing: 20.08.2021

Appellant by: Adnan Afzal Advocate

Respondent (State) by: Hafiz Asghar Ali, DPG with Irshad, S.I

Complainant by: Nemo for the complainant

Ali Zia Bajwa, J:- This criminal Jail appeal has been directed against the judgment, dated 14-11-2018 passed by learned Additional Sessions Judge district Jhang, whereby Muhammad Faisal appellant was convicted under section 302(b), P.P.C. and sentenced to imprisonment for life with the direction to pay Rs.2,00,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased or in default thereof to undergo 06 months' S.I. The benefit of section 382-B, Cr.P.C. was, however, extended to him. On the other hand accused Ghulam Hassan (died during trial) Sharif, Riaz, Jahangir, Hasnat and Qaisar were acquitted of the charges through the same judgment. (Para No. 22 of impugned Judgment)

Factual matrix

2. The construction of the prosecution case, mainly was based upon the statement of Mst. Fatima Bibi (PW-12) and the brief facts narrated in the said complaint Ex.P-M are that complainant came to Basti Dewan wali Jhang after receiving the information of death of her granddaughter and she observed bluish marks on the neck of Mst Shabna Bibi deceased. Complainant having suspicion of murder of Shabna Bibi, inquired about the

cause of death from Jahangir accused, when he along with accused Faisal and Qaisr came there, to which they became apprehensive and nervous and could not furnish satisfactory justification qua the death of deceased to the complainant.

Akhter Abbas and Anwar PWs informed the complainant that on 17.10.2015 at about 5:00 A.M they saw the accused Faisal, Qaisar Jahangir and Hasnat coming out of the house of Riaz Fouji and Sharif, walking away at a fast pace. They further suggested that if the aforementioned accused persons do not disclose the cause of death of deceased, then she must had been murdered by them. Accused Ghulam Hassan (since died) also came there after hearing hue and cry of the complainant and said that he will not spare the culprits who committed murder of the deceased. Meanwhile police reached there and shifted the dead body of the deceased to Civil Hospital Jhang for postmortem examination. Complainant further stated that on 21.10.2015 she came to know that accused persons had committed the murder of Mst. Shabna on the behest of Ghulam Hassan. Accused Ghulam Hassan got recorded his statement regarding suicide of Shabna Bibi on 17.10.2015 to the police. When complainant asked Ghulam Hassan accused qua his statement before the police regarding suicide of Shabna Bibi on 21-10-2015 at 10:00 am, after shillyshallying, he replied that character of deceased was not good and she was ruining the family honor. He further disclosed that accused Faisal, Qaisar, Jahangir, Hasnat and Sharif committed her murder on his instigation. Meanwhile accused Faisal came there and confessed in presence of one Nasrullah that he along with co-accused Qaisar Jahangir, Hasnat, Muhammad Riaz and Muhammad Sharif had committed murder of Mst Shabna Bibi by strangulating her with a rope around her neck. The accused Faisal also extended threats of dire consequences to the complainant in case of making any complaint to the police. As for the motive, the complainant stated that accused persons committed the murder of her granddaughter on the pretext of honour.

3. Alleged Place of occurrence in this case is Chak No. 163 J.B. Basti Dewan Wali, Jhang. It is the case of prosecution that after the murder of deceased Shabna bibi, her corpse was taken to Chak No. 159 J.B. by the appellant and other accused, which is situated in the territorial Jurisdiction of a different police station i.e. Mochiwala, district Jhang, for burial.

4. Appellant is husband of deceased, accused Ghulam Hassan (since died) is her real father, accused Jahangir (since acquitted) is her father in law, accused Qaiser (since acquitted) is her brother in law (brother of appellant Faisal), Hasnat (since acquitted) is brother of accused Jahangir and acquitted accused Sharif and Riaz are also from the brotherhood of appellant.

Police Proceedings

5. Preliminary proceedings under sections 174 & 176 Cr.P.C were carried out on 17-10-2015 by Nawaz Anjum Inspector (PW.14) as result of rapt No. 15 dated 17-10-2015 incorporated in daily diary of the concerned police station on the stance of accused Ghulam Hassan (real father of deceased) and autopsy of deceased (Ex:PH) was conducted on the same day. Thereafter on the application of complainant (Ex:PM) crime report (Ex:PD) was registered qua the alleged murder of deceased Shabna Bibi. Initial investigation of the case was also conducted by the Nawaz Anjum ASI. He arrested appellant/accused Faisal in this case on 11-11-2015, who got recovered "Rasi" P-2 in consequence of his discloser from the room of his house on 15-11-2015. On 18-11-2015 he got prepared report under section 173 Cr.P.C against accused Faisal and Ghulam Hassan (since died), and same was submitted in the court through prosecution.

6. On 22-12-2015 accused Jahangir (Since acquitted), Sharif

(Since acquitted) and Riaz (Since acquitted) joined the investigation of the case and their arrest was deferred in this case but subsequently on 26-1-2016 I.O. arrested accused Jahangir. After completion of investigation, I.O. submitted report under section 173 Cr.P.C. before the trial court through prosecution for trial of accused Jahangir (Since acquitted) in column No 3 and accused Qaisar (Since acquitted) and Hasnat (Since acquitted) in column No 2 of the report with red ink being proclaimed offender in accordance with law. Subsequent investigation of the case was carried out by Ikhlaz Ahmad SI and after completion of investigation he submitted reports under section 173 Cr.P.C to the extent of accused Hasnat (Since acquitted) and Qaisar (Since acquitted) on 08-11-2016 and 25-11-2016 respectively.

Proceedings before the Trial Court

7. On 10-01-2017 accused persons were charge sheeted in this case and they pleaded not guilty and claimed trial. The prosecution, in order to prove its case, produced total fourteen witnesses, against accused persons. Fatima Bibi, complainant, (PW12) and Nasrullah (PW8) were witnesses of extra-judicial confession. Anwar Ali (PW.6) and Akhter Abbas (PW.7) were witness of wajtakkar.

8. Imtiaz Ali 621/C (PW3) and Kashif Waseem 2059/C (PW5) were witness of recovery of "Rasi" P- 2. On the receipt of written complaint prepared and sent by Nawaz Anjum. (PW14) through Abdur Rasheed 1243/H.C (PW1), Faiz Ullah 1522/MHC (PW4) chalked out formal FIR (Ex.PD), while Raja Usman Yousaf Draftsman (PW11) has prepared scaled site plan EX:PL of the place of occurrence. Investigation in this case was carried out by Nawaz Anjum ASI. (PW14) and Ikhlaz Ahmad SI (PW13). Dr. Tahira Shamim appeared as (PW10) who had conducted postmortem examination on the dead body of Shabna Bibi deceased. Rest of the prosecution witnesses, more or less, are formal.

9. After the recording of prosecution evidence, appellant and other co-accused were examined under section 342 Cr.P.C., whereby they pleaded their innocence and denied all the allegations leveled against them. The appellant and other accused did not opt to depose within the scope of section 340(2), Cr.P.C. however, appellant produced attested copy of judgment dated 29-05-2015 Ex.D-A and copy of Rapt No 15 Mark-D-A in his defense.

10. The learned trial judge on conclusion of the trial held the appellant guilty of the offence charged and sentenced him in the manner as mentioned hereinabove but acquitted rest of the accused persons.

Arguments of the Parties

11. Learned counsel for the appellant submits that the prosecution version is a cooked up story; the appellant has been falsely involved in this case due to unreliable conjunctures and surmises with malicious intention of the complainant; that admittedly there is no eye-witness of the occurrence and entire case is based upon circumstantial evidence, which is also not confidence inspiring; that the evidence of wajtakkar and that of extra-judicial confession are not worthy of reliance; that the instant case was registered against the appellant and other acquitted co-accused persons just to exert pressure upon them to effect a compromise in a case FIR No 384/10 offences under section 302/324/149/109 P.P.C registered with Police station Mochiwala against the Ghulam Hussain son, and Sarfraz son in law and other close relatives of the complainant Fatima Bibi; that the prosecution did not produce any independent and confidence inspiring evidence against the appellant during the course of trial, despite that he was held guilty and awarded the sentence of imprisonment for life merely on the basis of unreliable evidence; that the allegations were leveled against the appellant by the witnesses who had personal grudge against the appellant; that the

medical evidence is merely a corroborative piece of evidence, which cannot take place of primary and substantive evidence; that the recovery of rope at the instance of the appellant is hardly of any consequence being an embroidery of the main allegation, which could not be proved by the prosecution, through some concrete evidence; that the case against the appellant is nothing but a bunch of lies, therefore, the prosecution badly failed to bring home the guilt of the appellant beyond any reasonable doubt but learned trial court ignored all these facts and convicted the appellant in this case on the basis of same evidence which was disbelieved qua the other acquitted co-accused; Finally prays that the appeal may be accepted and the appellant being an innocent person may be acquitted of the charges.

12. Contrary to the above, learned Deputy Prosecutor General Punjab contended that the appellant strangled his innocent wife in a cold-blooded manner and his guilt had been established beyond any shadow of doubt by the prosecution through tangible and cogent evidence; that the ocular account, the medical evidence, recovery of rope at the disclosure of the appellant and other surrounding circumstances made it a case of proven credibility against him, hence, the impugned judgment did not suffer from any infirmity or legal defect; that the appellant committed brutal murder of his own wife, hence, he does not deserve any leniency and finally prays for dismissal of appeal.

13. Arguments heard and record perused.

14. Entire prosecution case hinges upon the circumstantial evidence as no direct evidence is available on the record qua the alleged murder. Prosecution relied upon the following evidence to prove the guilt of appellant:

i. Wajjtakkar- *Res Gestae*

- ii. Extra Judicial confession
- iii. Medical evidence
- iv. Recovery of Rasi (rope)
- v. Spot recoveries
- vi. Motive

Extreme care and caution is required in cases of circumstantial evidence and each piece of such evidence must be proved to hilt. In cases of circumstantial evidence every link must be connected with other link so as to form a continuous chain in a way that its one end touches the dead body and other end touches the neck of the accused. If any link in the said chain is weak or broken, remaining links shall also lose their probative value and benefit of such missing link should go in favour of accused. Reliance can be placed on various verdicts of esteemed Supreme Court of Pakistan wherein it was held as infra:

“To believe or rely on circumstantial evidence, the well settled and deeply entrenched principle is, that it is imperative for the Prosecution to provide all links in chain an unbroken one, where one end of the same touches the dead body and the other the neck of the accused. The present case is of such a nature where many links are missing in the chain”¹

“Placing reliance on circumstantial evidence, in cases involving capital punishment, the superior Courts since long have laid down stringent principles for accepting the same. It has been the consistent view that such evidence must be of the nature, where, all circumstances must be so inter-linked, making out a single chain, an unbroken one, where one end of the same touches the dead body and the other the neck of the accused. Any missing link in the chain would destroy the whole and would render the same unreliable for recording a conviction on a capital charge”²

¹ FAYYAZ AHMAD Versus The STATE - 2017 SCMR 2026,

² HASHIM QASIM and another V. The STATE - 2017 SCMR 986

“In cases of circumstantial evidence, the Courts are to take extraordinary care and caution before relying on the same. Circumstantial evidence, even if supported by defective or inadequate evidence, cannot be made basis for conviction on a capital charge. More particularly, when there are indications of design in the preparation of a case or introducing any piece of fabricated evidence, the Court should always be mindful to take extraordinary precautions, so that the possibility of it being deliberately misled into false inference and patently wrong conclusion is to be ruled out, therefore hard and fast rules should be applied for carefully and narrowly examining circumstantial evidence in such cases because chances of fabricating such evidence are always there. To justify the inference of guilt of an accused person, the circumstantial evidence must be of a quality to be incompatible with the innocence of the accused. If such circumstantial evidence is not of that standard and quality, it would be highly dangerous to rely upon the same by awarding capital punishment. The better and safe course would be not to rely upon it in securing the ends of justice”³

“By now, it is a consistent view that when any case rests entirely on circumstantial evidence then, each piece of evidence collected must provide all links making out one straight chain where on one end its noose fit in the neck of the accused and the other end touches the dead body. Any link missing from the chain would disconnect and break the whole chain to connect the one with the other and in that event conviction cannot be safely recorded and that too on a capital charge”⁴

As the entire case against the appellant is based upon aforementioned circumstantial evidence, therefore, I would like to examine each and every piece of evidence to ascertain whether the same is corroborated by other piece of evidence, and maintains complete chain of circumstances directly relatable to each other or whether any link in the chain is missing.

³ AZEEM KHAN’S CASE - 2016 S CMR 274

⁴ IMRAN alias DULLY and another Versus The STATE and others - 2015 S C M R 155

Wajtakkar- Res Gestae

15. the first significant piece of evidence relied upon by the prosecution in this case is evidence of wajtakkar, which has been furnished by Anwer Ali (PW6) and Akhter Abbas (PW7). According to these witnesses, they saw Muhammad Faisal appellant along with his other co-accused (since acquitted) on 17.10.2015 at about 5:00 a.m. while coming out from the house of Riaz Fouji and at that time they were in a perplex condition. Alleged occurrence took place in this case on 17-10-2015 but crime was reported to police on 21-10-2015 with an inordinate delay of four days for which no plausible explanation had been rendered by the prosecution.

16. Witnesses of the Wajtakkar did not witness the occurrence, and had allegedly seen appellant along with acquitted accused while fleeing away from the place of occurrence. PWs didn't offer anything plausible to justify their presence at the alleged place in such early hours of the day. It is also pertinent to mention that complainant of this case Fatima Bibi (PW.12), while deposing before the court on oath, didn't not utter a single word qua the fact that any of the prosecution witnesses informed her about the appellant Faisal coming out of the house of a co-accused Riaz Fouji along with other co-accused. Akhtar Abbas (PW.7) was also inimical towards the accused persons due to implication of his brother, father and uncle in Murder case of daughters of Ghulam Hassan. He was cross examined qua the aforementioned case and he admitted as under:

“It is in my knowledge that the Sarwar bibi and Rukhsana daughter of Ghulam Hassan (since died) have murdered and a criminal case was registered in police station Mochiwala regarding that occurrence”

“It is correct that my brothers namely Allah Ditta, Riaz, my father Shah Muhammad and my uncle Nazar were nominated as accused in the murder case of Sarwar bibi and Rkhsana at police station Mochiwala”

17. Furthermore, according to crime report, the house where alleged murder was committed belonged to accused Riaz (since acquitted) and nothing was brought on the record that appellant was occupant of that house. Although complainant of this case in his examination-in-chief stated that the house where alleged occurrence took place was hired by appellant from Riaz but nothing was brought on the record to substantiate such assertion. Witnesses of the Wajjtakkar Anwar Ali (PW.6) and Akhtar Abbas (PW.7), who are inhabitant of the locality also stated that appellant along with other accused was coming out of the house of Riaz @ Fouji rather from the house rented by appellant as tenant.

18. Even otherwise, evidence of Wajtakkar was a weak incriminating circumstance, which could easily be maneuvered by prosecution. Reliance can be placed on Muhammad Mansha Kausar’s Case⁵ as under:

“Learned counsel attempted to persuade us to accept the evidence furnished by Vajtakkar witnesses but, in our view, without any ocular evidence, no importance can be attached to this piece of evidence, which is otherwise weak and infirm”

Wajtakkar evidence in this case seems nothing, but an attempt on the part of the prosecution to craft evidence to ensure conviction of accused persons in a case of unseen occurrence.

⁵ 2003 SCMR 477

Extra Judicial Confession

19. Prosecution produced complainant of this case Fatima bibi (PW.12) and Nasrullah (PW.8) to prove extra judicial confession allegedly made by appellant Faisal and accused Ghulam Hassan. According to complainant, appellant on 21-10-2015 confessed, in presence of Nasrullah (PW.8), that he murdered the deceased Shabna Bibi and also extended threats that if she (complainant) did pursue the case, she will also be murdered. She further stated that next day i.e. 22-10-2015 accused Ghulam Hassan also came to her and confessed that he got the deceased murdered through Faisal accused etc. and also begged for the pardon, which I refused. Contrary to that Complaint (EX:PM) clearly transpires that only accused Ghulam Hassan (since died) made confession before the complainant and none else and that too on 21-10-2015. On the other hand Nasrullah (PW.8) deposed before the court that on 21-10-2015 he was present at Chak No. 159/J.B. when in his presence complainant of this case asked Ghulam Hassan why he stated before the police that deceased committed suicide. In reply Ghulam Hassan confessed that due to bad character of deceased, he got her murdered through appellant and other co-accused. In the meanwhile appellant also came there and confessed that he along with other co-accused murdered the deceased.

20. According to complainant, she arrived at Basti Deewan Wali, Jhang on 17-10-2015, where dead body of Shabna was lying and she noticed bluish mark on her neck. Meanwhile police arrived there and took the dead body of Shabna bibi for autopsy to civil hospital jhang. Such assertion of the complainant is negated by the statement of Kamran Ali Si (PW.9) who stated that after the occurrence at Chak No. 163 J.B. dead of Shabna bibi was taken to Chak No. 159 J.B. situated in the territorial jurisdiction of Police station Mochiwala. He did not utter a single word qua the presence of complainant there. Complainant remained mum for four days, which further

makes her stance doubtful, disbelieving and skeptical.

21. Why accused shall make confession before the complainant and why would they implicate themselves before her and Nasrullah (PW.8), as apparently neither there were any moral compulsions nor they would expect pardon from her or other prosecution witness, especially keeping in view that Ghulam Hassan one of the accused was real father of deceased Shabna bibi. Allegedly appellant and other co-accused also extended threats of dire consequences to complainant if she pursues the case, which further weaken the justification of making extra judicial confession. No time, place, manner of occurrence and role played by each accused in commission of offence in question had been provided in extra-judicial confession, which further makes it doubtful. Extra judicial confession not providing any details of the occurrence and manner in which it was committed as such said story cannot be treated as confession made by the accused. Same view was rendered by Honorable Mr. Justice Asif Saeed Khan Khosa in **GHULAM ABBAS's Case**⁶ in the following terms:

'The alleged confession made by Ghulam Abbas appellant before these witnesses was deficient in the relevant details and it had never been specified therein as to which appellant had played what role in the alleged murder of Ghulam Mustafa deceased'

22. In its landmark Judgment of **Mst. ASIA BIBI's Case**⁷, august Supreme Court of Pakistan, after analyzing approximately the entire case law on the subject, held at Para No. 42 as *infra*:

"to the extent of confessing the guilt in a public gathering, cannot be termed as an extra-judicial confession because no time, date and manner of commission of offence was given and further, no circumstances under which the appellant had

⁶ 2008 YLR 1104

⁷ PLD 2019 Supreme Court 64

allegedly committed the offence, have been narrated in the alleged confessional statement. In this regard it is to be noted that this Court has repeatedly held that evidence of extra-judicial confession is a fragile piece of evidence and utmost care and caution has to be exercised in placing reliance on such a confession. It is always looked at with doubt and suspicion due to the ease with which it may be concocted. The legal worth of the extra judicial confession is almost equal to naught, keeping in view the natural course of events, human behaviour, conduct and probabilities, in ordinary course. It could be taken as corroborative of the charge if it, in the first instance, rings true and then finds support from other evidence of unimpeachable character. If the other evidence lacks such attribute, it has to be excluded from consideration. Reliance in this behalf may be made to the cases of Nasir Javaid v. State (2016 SCMR 1144), Azeem Khan and another v. Mujahid Khan and others (2016 SCMR 274), Imran alias Dully v. The State (2015 SCMR 155), Hamid Nadeem v. The State (2011 SCMR 1233), Muhammad Aslam v. Sabir Hussain (2009 SCMR 985), Sajid Mumtaz and others v. Basharat and others (2006 SCMR 231), Ziaul Rehman v. The State (2000 SCMR 528) and Sarfraz Khan v. The State and 2 others (1996 SCMR 188)”

23. In the present case complainant also had her own axe to grind to implicate the accused persons in the present case. Complainant admitted in her cross-examination that a criminal case qua the murder of Sarwar bibi, Rukhsana daughters of Ghulam Hassan and Faizan bibi wife of Jahangir was registered against Ghulam Hussain son of the complainant and her son-in-law Sarafraz. As a result of trial in that case son-in-law of the complainant was awarded death penalty. Judgment of that case was also tendered in defense by the appellant as (EX:DA). Complainant further admitted in her cross-examination as under:

‘If the complainant party of murder case of Sarwar bibi, Faiza Bibi and Rukhsana agreed to compromise in that case I will also compromise in this case’

24. The aforementioned facts certainly raise serious doubt about the

veracity of the witnesses of the prosecution, undermines the credibility of the testimony and renders it unsafe and unworthy to place any reliance upon it. Even otherwise, extra-judicial confession is a very weak type of evidence and the same obviously needs neutral/strong corroboration from other independent sources which is conspicuously missing in this case. Guidance can be sought from Tahir Javed's Case⁸ wherein at page 170, the august Supreme Court of Pakistan was pleased to observe as under:-

"10. It may be noted here that since extra-judicial confession is easy to procure as it can be cultivated at any time, therefore, normally, it is considered as a weak piece of evidence and Court would expect sufficient and reliable corroboration for such type of evidence. The extra-judicial confession therefore must be considered with over all context of the prosecution case and the evidence on record. Right from the case of Ahmad v. The Crown PLD 1951 FC 107 it has been time and again laid down by this Court that extra-judicial confession can be used against the accused only when it comes from unimpeachable sources and trustworthy evidence is available to corroborate it.

25. Taking in to consideration the guiding principle given by Hon'ble Supreme Court of Pakistan in judgments referred above, I have no other option than to discard the evidence of extra-judicial confession being concocted and cooked up by the prosecution to strengthen its case.

Medical evidence

26. Autopsy of deceased was conducted by Dr. Tahira Shamim (PW.10) on 17-10-2015. Ligature mark was found present on the front of neck. Except that no injury or marks of violence were detected on dead body of Shabna bibi. It is otherwise trite law by now that medical evidence can only confirm the ocular account with regard to the receipt of injury, locale of injury, kind of weapon used for causing the injury, duration between

⁸ 2009 SCMR 166

the injury and the death but would not disclose the identity of the culprits. Reliance can be placed on **Muhammad Mansha's Case**⁹ wherein it was held by the august Supreme Court of Pakistan after considering number of judgments¹⁰ that:

“It has been declared by this Court in various judgments that the medical evidence neither pin point the accused nor establish the identity of the accused, and at the most can depict the locale of injury, duration, weapon used etc. and medical evidence can never be considered to be a corroborative piece of evidence and at the most can be considered a supporting evidence only to the extent of specification of seat of injuries, the weapon used, duration, the cause of death etc.”

27. According to PW.10 Dr. Tahira Shamim six vaginal swabs were taken during autopsy. Three were sealed in bottle and sent to chemical laboratory for detection of semen and serologist test. Three other swabs were sent to Punjab Forensic Science Agency (PFSA), Lahore for DNA test. Astonishingly two sealed parcels, one containing three vaginal swabs and other containing one vaginal swab, were submitted with PFSA on 22-10-2015 by Muhammad Nawaz Anjum (899/C). No statement of any such constable before the trial court is available on the record. According to report of PFSA i.e. Exh.PX there was no seminal material was detected on three vaginal swabs rather seminal material detected on one vaginal swab separately sealed, which clearly suggests that one extra vaginal swab was submitted with PFSA in order to craft evidence against the appellant and other accused persons. In addition to that no DNA test was got conducted by the investigation officer of this case. Aforementioned circumstances reflect that investigation officer carried out investigation of this case in a manner

⁹ 2018 SCMR 772

¹⁰ (Muhammad Sharif and another v. The State (1997 SCMR 866), Mehmood Ahmad and 3 others v. The State and another (1995 SCMR 127), Dildar Hussain v. Muhammad Afzaal alias Chala and others PLD 2004 SC 663), Abdul Majeed v. Mulazim Hussain and others (PLD 2007 SC 637) and Hashim Qasim and another v. The State (2017 SCMR 986).

which was far from fair and honest. In view of above, it is clear that medical evidence hardly lends any support to the prosecution case to prove that present appellant committed the murder in question.

Recovery of Rasi (rope)

28. On 15-11-2015 on the pointing out of appellant Rasi-P2 (rope) was recovered from the house situated at Basti Dewan Wali, which was taken into possession vide recovery memo EX:PC. Furthermore rope recovered from the appellant is of common patron easily available in the market having no distinctive mark, which can easily be foisted upon the appellant. Such recovered piece of rope was also not sent to Forensic Science Laboratory for DNA test to ascertain whether it was the same rope, which was used to strangle the deceased, therefore the recovery of rope does not bear any significance to prove the guilt of appellant. Even otherwise, it goes without saying that the recovery of such piece of rope is a corroborative piece of evidence and in a case where ocular evidence is discarded, mere recovery of such piece of rope cannot be made basis for conviction. Reliance can be placed on **Kirir and another V. The Crown**¹¹ wherein august Supreme Court of Pakistan held:

“What remains therefore is only the evidence of recovery of a shirt from Kirir and a hatchet from Yaroo, both of which were found to be stained with human blood. These recoveries by themselves, without any reliable evidence as to how the occurrence took place, cannot be regarded as evidence establishing the case against the appellants beyond all reasonable doubt. In the circumstances of the case these recoveries are not inconsistent with the innocence of the appellants”

¹¹ 1969 P Cr. L J 1253

Same view was rendered by the honorable Supreme Court of Pakistan in Muhammad Saleem's Case¹² and in Muhammad Yaqoob's Case¹³ respectively:

“mere recovery of a weapon of offence matching with a crime-empty was not sufficient to provide corroboration to the other pieces of circumstantial evidence”

“We agree with the High Court that in absence of any other incriminating evidence mere recovery on the pointation, of Muhammad Yaqoob respondent would not be sufficient to hold him guilty”

Consequently, mere recovery of piece of rope on the pointing out of appellant without having any distinct mark thereon to identify and relate the same in connection with the alleged crime, is hardly of any avail to the prosecution.

Spot Recoveries

29. According to investigation officer (PW.14), he secured blood stained earth and also took into possession a blood stained mattress (Talai P.3) from the place of occurrence vide recovery memo EX:PG on 21-10-2015 i.e. four days after the alleged occurrence. According to autopsy report, no injury was found on the body of deceased which caused any bleeding, so in that eventuality taking into possession blood stained earth and mattress seems overdoing, which resultantly is of no avail to prosecution case. Report of Punjab Forensic Science Agency (PFSA) EX:PX only reveals that human blood was identified on dry soil whereas the blood stained mattress was not sent to PFSA.

Motive behind the alleged occurrence

30. The motive allegedly came to known to the prosecution

¹² 2016 SCMR 1605

¹³ 2001 SCMR 308

witnesses through the extra judicial confession made by appellant that deceased was of bad character and was ruining the family honour. Prosecution could not brought on the record any other independent evidence to prove that alleged motive existed and resulted in the alleged occurrence. Even otherwise, when evidence of extra judicial confession is not credible, such motive would also not be worthy of believing.

31. Apart from the above, co-accused Qaisar, Jahangir, Hasnat, Muhammad Riaz and Muhammad Sharif were burdened with identical allegations as compared to those leveled against the appellant. The above said accused persons were acquitted of the charge after full-fledged trial. Neither complainant nor the State opted to prefer appeal against the acquittal of said accused persons and judgment of their acquittal has attained finality. Now the next proposition of law which involves consideration in present case is whether the evidence which had been disbelieved to the extent of five co-accused who had been acquitted by the trial court can be believed to the extent of the appellant.

32. It is well established law that if the prosecution evidence is disbelieved against the few accused facing trial, Court is competent to reject such evidence against other accused in absence of strong and independent corroboration on record. In these circumstances when the evidence to the extent of acquitted co-accused has already been disbelieved by learned trial court, it cannot be believed against the appellant until and unless the same is supported by any independent corroborative piece of evidence. Reliance can be placed on Munir Ahmed's Case¹⁴ wherein august Supreme Court pronounced:

“If some independent and strong corroboration is available

¹⁴ 2019 SCMR 79

the set of witnesses which has been disbelieved to the extent of acquitted co-accused of the appellant can be believed to the extent of the appellant”

This view can be further fortified by **Ulfat Husain’s Case**¹⁵ in which it was held:

“In these circumstances, independent and strong corroboration from other pieces of evidence is required to believe the same set of evidence against the appellant which has already been disbelieved by the learned trial Court against his acquitted co-accused, whose roles were quite similar as that of the appellant. Such corroboration is very much lacking in the instant case. Considering all these circumstances, we have no manner of doubt in our minds that prosecution has failed to prove its case against the appellant beyond any shadow of doubt”

Similar view was expressed by the honorable Supreme Court in **Muhammad Ashraf Alias Acchu’s Case**¹⁶ that:

“In these circumstances, when the direct evidence of Sultan Ahmad (PW9) and Abdul Shakoor (PW11) has been disbelieved up to this Court to the extent of co-accused Saeed Ahmad, it is of paramount importance to see as to what independent corroboration is available on record to distinguish the case of appellant from that of his acquitted co-accused”

33. I have minutely scrutinized the record and carefully examined the prosecution evidence which leads me to observe that no independent and strong corroborative evidence is available on the record to warrant the conviction of appellant. Even otherwise, the whole case of prosecution was primarily founded on the strength of extra-judicial confession and wajtakkar evidence, both of which have miserably failed to secure any credence on the accepted legal parlance. Resultantly, the case of prosecution is left as a

¹⁵ 2018 SCMR 313

¹⁶ 2019 SCM R 652

spineless structure and as an unfounded resume of fiction far from believable and proven facts.

34. The upshot of the above discussion is that the prosecution has badly failed to bring home the guilt of the appellant beyond reasonable shadow of doubt. The impugned judgment appears to have been passed merely on conjectures and surmises, without taking into account scores of infirmities and weaknesses in the Prosecution's case, thus, same is not sustainable in the eye of law by any stretch of imagination. In the light of foregoing reasons, this appeal **stands accepted**. The conviction and sentence, awarded to the appellant by the learned trial Court vide impugned Judgment dated 14-11-2018, are set aside and he is acquitted of the charge. He is directed to be released from the jail forthwith if not required in any other case

(ALI ZIA BAJWA)
JUDGE

Approved for reporting